FAI-F012E24-1

UNITED STATES
DEPARTMENT OF LABOR
MINE SAFETY AND HEALTH ADMINISTRATION

REPORT OF INVESTIGATION

Surface
(Dimensional Granite Stone)

Machinery Accident Fatality Report
July 29, 2025

Papich Construction Company, Inc (P599)
Pismo Beach, California

at

Academy Black
Cold Spring Granite Company
Clovis, Fresno County, California
ID No. 04-00231

Accident Investigators

Benjamin Burns
Supervisory Mine Safety and Health Inspector

Litia Loli
Mine Safety and Health Inspector

Jason Jeno
Mine Safety and Health Inspector

Originating Office
Mine Safety and Health Administration
Vacaville District
991 Nut Tree Road, Second Floor
Vacaville, CA 95687
Nickolas Gutierrez, Acting District Manager

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OVERVIEW

On July 29, 2025, at 7:50 a.m., Jonathan Swarthout, a 35-year-old contractor excavator operator with seven years of mining experience, died after the excavator he was operating over traveled his work area, causing the machine to tip forward which crushed the cab against a boulder.

The accident occurred because the contractor did not: 1) ensure the excavator operator maintained control of the equipment while it was in motion, and 2) develop or implement a written safety program to identify and analyze hazards and reduce the resulting risks related to the movement and the operation of surface mobile equipment.

GENERAL INFORMATION

Cold Springs Granite Company owns and operates the Academy Black mine, a dimensional granite stone mine located in Clovis, Fresno County, California. The mine employs six miners and operates one 8-hour shift per day, 5 days per week. The Academy Black mine drills and blasts to extract large granite boulders from the pit. Miners further size the boulders to meet customer specifications. The mine stores the sized stone onsite or loads them onto flatbed trucks for delivery to customers. Cold Springs Granite Company contracts Papich Construction Company, Inc (Papich) to sort large boulders with excavators, load them into haul trucks, and take them to an onsite storage area. The dimensional granite stones are sold to the public or for

use in civil engineering projects. Swarthout was an employee of Papich.

The principal management official at the Academy Black mine at the time of the accident was:

Larry McDonald	Supervisor

The principal management official for Papich at the time of the accident was:

Wilber Diaz	Foreman

The Mine Safety and Health Administration (MSHA) completed the last regular safety and health inspection at this mine on April 2, 2025. The 2024 non-fatal days lost incident rate for the Academy Black mine was zero, compared to the national average of 1.23 for mines of this type.

DESCRIPTION OF THE ACCIDENT

On July 29, 2025, at 7:00 a.m., Swarthout began his shift by attending a pre-shift meeting in the Papich laydown yard/ready line area (see Appendix A). Wilber Diaz, foreman for Papich, assigned Swarthout to excavate boulders and sort dirt at the Southeast Dump site of the pit. At approximately 7:15 a.m., Diaz drove Swarthout to his work area and dropped him off at the excavator, which was just north of the entry to the elevated pad. After Diaz dropped Swarthout off, he drove to another excavator that was parked at the bottom of the hill. At 7:40 a.m., while Diaz was tramming his excavator up the inclined pit access roadway, he saw the boom of Swarthout's excavator rising upward, which did not appear normal. Diaz stopped his excavator and ran toward Swarthout's excavator.

When Diaz arrived, he saw that the excavator tipped over off the elevated pad, and the cab came to rest on a large boulder. Diaz saw that Swarthout was badly injured and called out to him, with no response. Diaz called Larry McDonald, supervisor for Cold Spring Granite Company, on his cell phone and asked him to call 911. McDonald called 911 at 8:00 a.m.

At approximately 8:15 a.m., the Fresno County Sheriff's Office arrived on scene. At 8:18 a.m., American Ambulance arrived, followed by CAL FIRE Fresno-Kings. Paramedics assessed Swarthout, who was unresponsive and did not have a pulse. At 8:21 a.m., CAL FIRE Fresno-Kings began extrication efforts. At 8:27 a.m., Joshua Christian-Miller, paramedic intern, pronounced Swarthout deceased.

INVESTIGATION OF THE ACCIDENT

On July 29, 2025, at 8:14 a.m., Michael Lemons, safety manager for Papich, called the Department of Labor National Contact Center (DOLNCC) to report the accident. The DOLNCC contacted Yasser Akbarzadeh, staff assistant, who contacted Kevin Abel, acting district manager. Jennifer VanWey, acting supervisory mine safety and health inspector, saw the escalation report email from the DOLNCC and sent Jason Jeno, mine safety and health inspector, to the mine. Ty Fisher, acting assistant district manager, sent Benjamin Burns, supervisory mine safety and

health inspector, and Litia Loli, mine safety and health inspector, to the mine. Fisher assigned Burns as the lead investigator.

At 1:15 p.m., Jeno arrived at the mine and issued an order under the provisions of Section 103(k) of the Mine Act to ensure the safety of the miners and preservation of evidence. On July 30, 2025, at 8:00 a.m., Burns and Loli arrived at the mine to continue the investigation.

The MSHA accident investigation team, in conjunction with the California Division of Occupational Safety and Health, Mining and Tunneling Unit, conducted an examination of the accident scene; interviewed miners, mine management, contractors, and contractor management; and reviewed conditions and work procedures relevant to the accident. See Appendix B for a list of persons who participated in the investigation.

DISCUSSION

Location of the Accident

The accident occurred on an elevated pad at the Southeast Dump site of the pit (see Appendix C).

Weather

At the time of the accident, the weather was clear, and the temperature was 82 degrees Fahrenheit. Investigators determined that the weather did not contribute to the accident.

Equipment Involved

The excavator involved in the accident was a Caterpillar 365C Excavator, owned by Papich (see Appendix D). On the day of the accident, there were no deficiencies identified or reported. The left side of the excavator cab was badly damaged due to the accident. During extrication, the controls on the operator's right side were also damaged, so investigators could not perform functional testing on the excavator. Holt Caterpillar downloaded data from the Electronic Control Module and provided it to MSHA for evaluation by MSHA Technical Support. There were no diagnostic or event codes in the data that would relate to the cause of the accident. Investigators determined there were no functionality deficiencies that contributed to the accident.

Mining Method and Ground Conditions

The mine operator primarily used an excavator to load boulders. The excavator operates from an elevated pad, with bench heights ranging from approximately 10 to 20 feet and widths between 40 and 45 feet. Swarthout trammed the excavator approximately 80 feet across the elevated pad before the excavator tipped over the approximatly 10-foot-high edge. Investigators determined that the mining method did not contribute to the accident. Additionally, investigators determined there was no evidence of ground failure where the excavator was operating.

Examinations

Papich did not perform adequate examinations of work areas at the mine. Diaz performed the examinations while driving through the site in his vehicle. The mine operator did not have any records that such examinations were made. However, investigators determined that the lack of adequate workplace examinations and documentation did not contribute to the accident because there were no hazards on the elevated pad that would have caused the accident.

Prior to the accident, Papich had not established a method to record and report pre-operational inspections of mobile equipment. According to interviews, some equipment operators were reporting problems via text to the supervisor, while others recorded them on inspections forms. Investigators determined that this did not contribute to the accident because pre-operational inspections were completed, and no conditions were identified that may have contributed to the accident.

Training and Experience

Swarthout had 7 years of mining experience, all with Papich. Swarthout received site-specific hazard awareness training on July 22, 2025; task training on a Caterpillar 365C excavator on January 11, 2022; and annual refresher training on February 13, 2025. Investigators determined that Swarthout received all training in accordance with MSHA Part 46 training regulations.

Written Safety Program

Papich did not develop or implement a written safety program to identify and analyze hazards and reduce the resulting risks related to the movement and the operation of surface mobile equipment. The written safety program should have included the movement of mobile equipment on elevated areas; maintaining control of mobile equipment; operating equipment on uneven or rough terrain; and the use of seat belts. Investigators determined the lack of this written safety program contributed to the accident.

ROOT CAUSE ANALYSIS

The accident investigation team conducted an analysis to identify the underlying causes of the accident. The team identified the following root causes, and the mine operator implemented the corresponding corrective actions to prevent a recurrence.

1. Root Cause: The contractor did not ensure that the excavator operator maintained control of the equipment while it was in motion.

   Corrective Action: The contractor updated the training program and provided additional training to mobile equipment operators on the safe movement of mobile equipment while in travel including maintaining the bucket facing direction of travel.

2. Root Cause: The contractor did not develop or implement a written safety program to identify and analyze hazards and reduce the resulting risks related to the movement and the operation of surface mobile equipment.

   Corrective Action: The contractor developed and implemented a written safety program to identify and analyze hazards and reduce the resulting risks related to the movement and the operation of surface mobile equipment. Specifically, to address operating machinery on uneven terrain and in areas where overtravel hazards exit.

CONCLUSION

On July 29, 2025, at 7:50 a.m., Jonathan Swarthout, a 35-year-old contractor excavator operator with seven years of mining experience, died after the excavator he was operating over traveled his work area, causing the machine to tip forward which crushed the cab against a boulder.

The accident occurred because the contractor did not: 1) ensure the excavator operator maintained control of the equipment while it was in motion, and 2) develop or implement a written safety program to identify and analyze hazards and reduce the resulting risks related to the movement and the operation of surface mobile equipment.

Approved By:

_____ _____

Nickolas Gutierrez Date
Acting District Manager

ENFORCEMENT ACTIONS

1. A 103(k) order was issued to Cold Springs Granite Company.

   A fatal accident occurred on July 29, 2025, at 7:50 a.m. This order is being issued under the authority of the Federal Mine Safety and Health Act of 1977, under Section 103(k) to insure the safety of all persons at the mine and requires the operator to obtain the approval of an authorized representative of MSHA of any plan to recover any person in the mine or to recover the mine or affected area. This order prohibits any activity in the affected area. The operator is reminded of the obligation to preserve all evidence that would aid in investigating the cause or causes of the accident in accordance with 30 CFR 50.12.

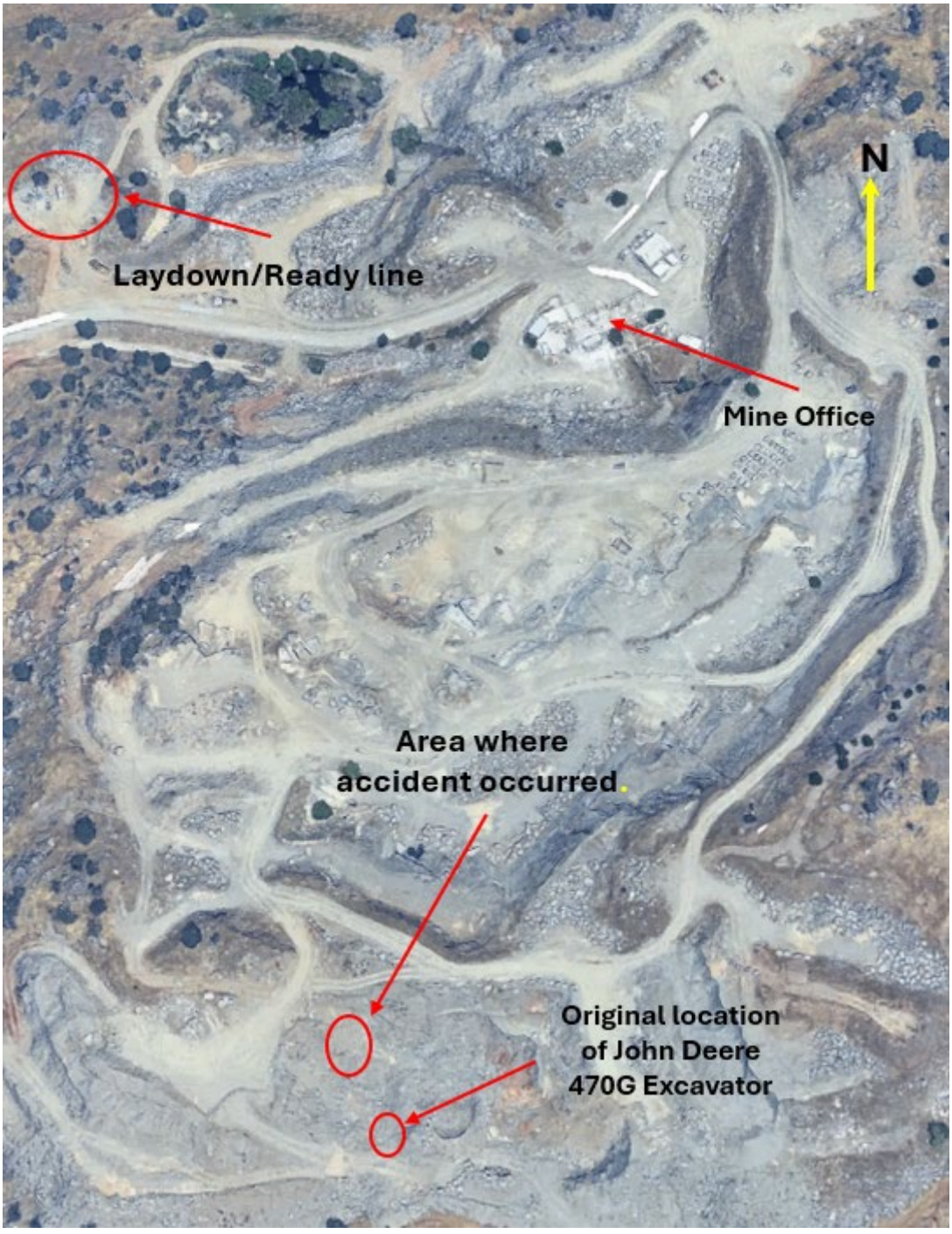
2. A 104(a) citation was issued to Papich Construction Company, Inc for a violation of 30 CFR 56.9101.

   On July 29, 2025, a fatal accident occurred when a contractor equipment operator over traveled his work area causing the machine to topple forward and crush the cab against a boulder. The contractor did not ensure equipment operator maintained control of the CAT 365C Excavator. The machine was being used to sort boulders in the Southeast Dump site of the pit. The machine was moved approximately 80 feet where it over traveled the approximate 10-foot-high dig face.

3. A 104(a) citation was issued to Papich Construction Company, Inc for a violation of 30 CFR 56.23002(a).

   On July 29, 2025, a fatal accident occurred when a contractor equipment operator over traveled his work area, causing the machine to tip forward which crushed the cab against a boulder. The contractor did not develop or implement a written safety program to identify and analyze hazards and reduce the resulting risks related to the movement and the operation of surface mobile equipment. Specifically, to address operating machinery on uneven terrain and in areas where over-travel hazards exit.

APPENDIX A – Aerial View of the Mine Site



APPENDIX B – Persons Participating in the Investigation

Cold Spring Granite Company

Robert Nelson	Operations Manager
Larry McDonald	Supervisor
James McCurray	Quarryman/Blaster
Isaac Tellez	Quarryman/Blaster

Papich Construction Company, Inc

Michael Lemons	Safety Manager
Travis Mullins	Materials Operation Manager
Jonathan Fields	Head Fleet Superintendent
Wilber Diaz	Foreman
Sean Sanchez	Mechanic
Mariano Diaz	Equipment Operator
Aaron King	Equipment Operator
Brando Novela	Equipment Operator
Danny Salvidar	Equipment Operator

California Division of Occupational Safety and Health, Mining and Tunneling Unit

Randell Dutton	Lead Inspector
Andrew Grantham	Inspector
Nathan Siemens	Inspector

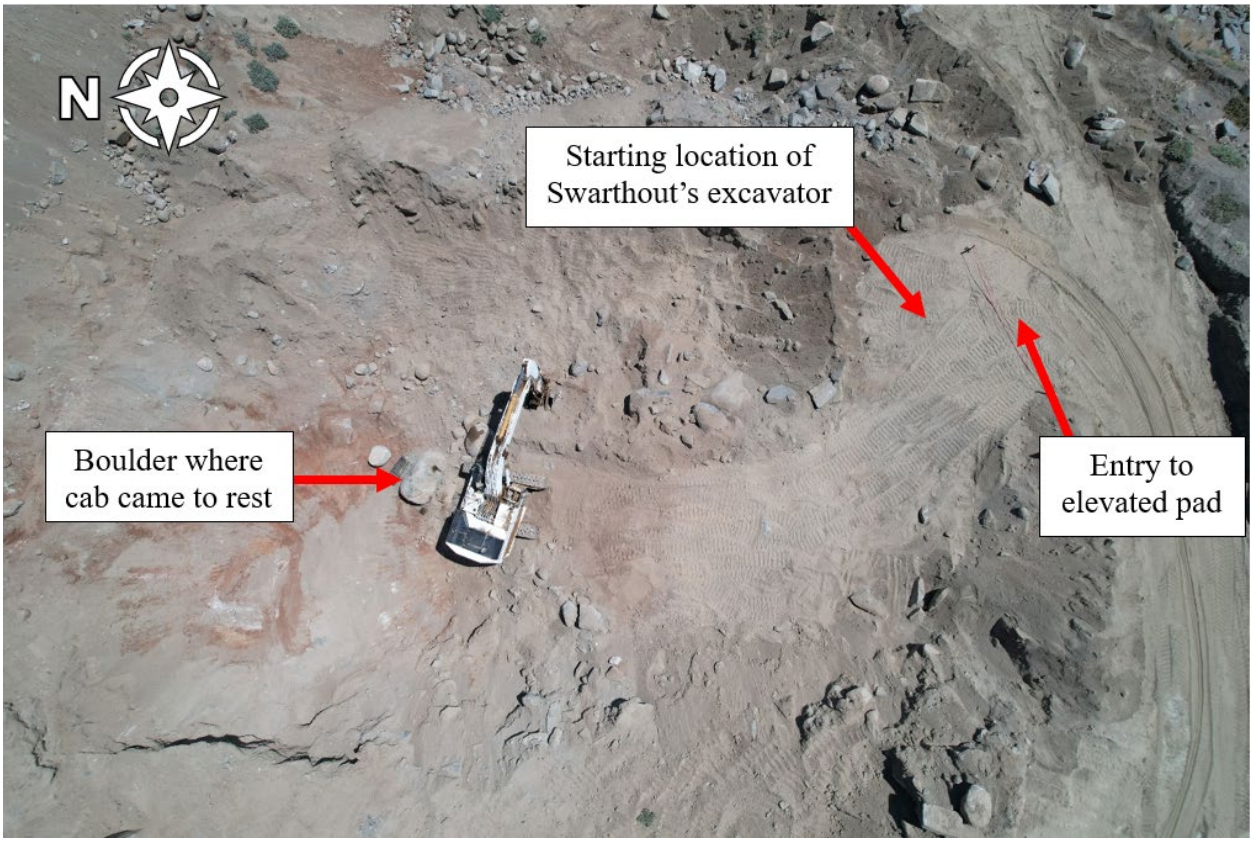
Operating Engineers Local Union 3

Scottie Dixon	Union Representative

Mine Safety and Health Administration

Benjamin Burns	Supervisory Mine Safety and Health Inspector
Jason Jeno	Mine Safety and Health Inspector
Litia Loli	Mine Safety and Health Inspector

APPENDIX C – Aerial View of Accident Location



APPENDIX D – Example of a Caterpillar 365C Excavator

